Court of Appeals

of the State of New York

APL-0000-00000

Index No. 000000/0000

[PLAINTIFF-RESPONDENT NAME]

Plaintiff-Respondent,

–against–

[DEFENDANT-APPELLANT NAME]

Defendant-Appellant.

BRIEF FOR PLAINTIFF-RESPONDENT

On Appeal from the Supreme Court of the State of New York, Appellate Division, [Department]

[Counsel Name]

Attorney for Plaintiff-Respondent

[Firm Name]

[Street Address]

[City, State ZIP]

[Telephone]

[Month Day, Year]

DISCLOSURE STATEMENT

[Disclosure statement text, if required by 22 NYCRR 500.1(f).]

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TABLE OF AUTHORITIES

Cases

[Case A] v. [Case B], [reporter citation] (N.Y. [year])
[Case C] v. [Case D], [reporter citation] (N.Y. [year])

Rules

22 NYCRR 500.13, 22 NYCRR 500.13

PRELIMINARY STATEMENT

Plaintiff-Respondent respectfully submits this brief in response to the brief of Defendant-Appellant. The Appellate Division correctly held that the record establishes the claim as a matter of law. [Placeholder paragraph that states the position in two or three sentences.] The order should be affirmed.

This brief answers each argument in the opening brief in the order the opening brief presents it. Where the opening brief describes the record, this brief identifies the page of the record that supports the description, and it notes each point on which the opening brief misreads the record or the controlling authority.

QUESTIONS PRESENTED

1. Did the Appellate Division correctly hold that the statute, read as a whole, creates the cause of action pleaded in the complaint?

2. Did the Appellate Division correctly hold that the evidence presented at summary judgment raised no triable issue of fact on causation?

STATEMENT OF JURISDICTION

This Court has jurisdiction under CPLR 5601(a) because the Appellate Division decision was made on a question of law and the order of the Supreme Court was entered on a stipulation of the parties. [Placeholder: confirm the statutory basis and the date of the order from the record.]

STATEMENT OF THE CASE

A. The Parties and the Agreement

Plaintiff-Respondent entered into an agreement with Defendant-Appellant in [year]. The agreement required Defendant-Appellant to perform specified services and to give written notice before any change in those services. [Placeholder sentence describing the record citation for the agreement.]

1. The Notice Provision

The notice provision required written notice delivered to a named officer at a stated address. The record shows that the notice was delivered to that officer on the date recorded in the complaint. [Placeholder: record citation.]

2. The Performance Dispute

Defendant-Appellant later changed the services without further notice. Plaintiff-Respondent objected in writing within the period the agreement allowed. [Placeholder: record citation.]

B. Procedural History

Plaintiff-Respondent commenced this action in the Supreme Court. Defendant-Appellant moved to dismiss, and the Supreme Court denied the motion in substantial part. After discovery, both sides moved for summary judgment. The Supreme Court granted Plaintiff-Respondent's motion as to liability and reserved the question of damages. The Appellate Division affirmed. [Placeholder: record citations for each step.]

ARGUMENT

I. THE APPELLATE DIVISION CORRECTLY HELD THAT THE STATUTE CREATES THE CAUSE OF ACTION

A. The Standard of Review

This Court reviews the Appellate Division's determination of a question of law de novo. Where the Appellate Division affirmed the Supreme Court on the same ground, the question for this Court is whether that ground is correct. [Placeholder: cite the controlling authority for the standard of review.]

B. The Text of the Statute Supports the Cause of Action

The statute's text is the starting point. It provides that a person aggrieved by a failure to give notice may recover the damages caused by that failure. The provision does not require proof of intent, and it does not make recovery depend on any showing beyond the failure itself.

Defendant-Appellant reads a separate subdivision as limiting the remedy to administrative relief. That reading cannot be squared with the words of the subdivision, which refer to "any other remedy available at law," a phrase that would have no work to do if the remedy were confined to the agency. [Placeholder: quotation with citation.]

> The remedy provided by this section is in addition to, and not in lieu of, any other remedy available at law.

A court must give effect to every word of a statute. Reading the subdivision as Defendant-Appellant proposes would render that phrase meaningless, and it would reverse the presumption that the Legislature chose its words with care. [Placeholder: cite the canon of construction.]

C. The Legislative History Confirms the Plain Reading

The legislative history points the same way. The sponsor's memorandum described the bill as a remedy for the very conduct alleged here, and the committee report explained that the private right of action was added to supplement, not to replace, the agency's enforcement power.[1] Nothing in the history suggests that the Legislature meant to narrow the remedy in the way Defendant-Appellant now urges.

D. Defendant-Appellant's Policy Arguments Do Not Change the Result

Defendant-Appellant argues that recognizing the cause of action will expose regulated parties to uncertain liability. That is a policy argument, and it is for the Legislature to weigh. The statute already contains the limits that address the concern: a notice requirement that is specific, a cure period, and a cap on damages. Those limits show that the Legislature considered and resolved the policy question. [Placeholder: record or statutory citation for each limit.]

II. THE RECORD SHOWS NO TRIABLE ISSUE OF FACT ON CAUSATION

A. Plaintiff-Respondent Made a Prima Facie Showing

On the summary judgment motion, Plaintiff-Respondent submitted the notice, the agreement, and the affidavit of the officer who received the notice. That showing established that the change in services occurred without the written notice the agreement required, and that the change caused the loss claimed in the complaint. [Placeholder: record citations.]

The burden then shifted to Defendant-Appellant to produce evidence raising a triable issue of fact. Defendant-Appellant did not do so.

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[1] [Placeholder footnote. Footnotes are single-spaced and at least 12-point under the rule. The footnote should cite the memorandum and report by name, date and page of the legislative history.]

B. The Opposing Affidavit Does Not Raise a Triable Issue

Defendant-Appellant relies on an affidavit that states the change in services was made "for operational reasons." The affidavit does not dispute that notice was not given. It does not identify the operational reasons, the date on which they arose, or any document that records them. A conclusory statement of this kind does not raise a genuine issue of fact. [Placeholder: cite the rule on conclusory affidavits.]

C. The Appellate Division Applied the Correct Test

The Appellate Division asked whether the evidence, viewed in the light most favorable to Defendant-Appellant, showed a genuine dispute on each element of the claim. It found that it did not. That is the correct test, and the court's application of it to this record is sound. [Placeholder: cite the test and the Appellate Division decision by name and page.]

III. THE DAMAGES ISSUE IS NOT BEFORE THIS COURT

Defendant-Appellant asks this Court to modify the damages award. That question was reserved by the Supreme Court and was not decided by the Appellate Division. The question is therefore not properly before this Court, and the Court should decline to reach it. [Placeholder: cite the rule that limits review to questions decided below.]

Even if the question were reached, the award rests on the amounts shown in the record, and Defendant-Appellant does not identify any error in the calculation. [Placeholder: record citation.]

CONCLUSION

The order of the Appellate Division should be affirmed, with costs.

Respectfully submitted,

[Counsel Name]
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CERTIFICATE OF COMPLIANCE

I certify that this brief complies with the word limit of 22 NYCRR 500.13(c)(1), that it contains 1,119 words in the body of the brief, excluding the caption, tables and signature block, and that the count was made by the word-processing system used to prepare it.

[Counsel Name]
[Month Day, Year]

CERTIFICATE OF SERVICE

I certify that on the date below I served copies of this brief on counsel for all parties by [method of service].

[Counsel Name]
[Month Day, Year]